

UAE PDPL and AI - Guidance Notes (Sample)

Section 1 Purpose and status

These internal guidance notes summarise how the UAE Personal Data Protection Law (Federal Decree-Law No. 45 of 2021, PDPL) should be considered when AI systems process personal data. They are a placeholder for testing and do not quote the law. Article references must be confirmed by Legal.

Section 2 Scope

The PDPL applies to the processing of personal data of data subjects residing or having a place of business in the UAE, and to controllers and processors in the UAE, whether or not processing takes place in the UAE. It does not apply to data regulated by certain sector-specific or free-zone data protection regimes (for example DIFC and ADGM have their own laws).

Section 3 Lawful basis and consent

Processing generally requires the data subject's consent, which must be specific, clear and unambiguous and capable of being withdrawn, unless an exception applies, such as processing necessary to perform a contract with the data subject or to comply with legal obligations. Training an AI model on passenger data is a new purpose; the team must confirm whether an existing basis covers it or whether consent or another exception is needed.

Section 4 Processing principles

Personal data must be processed fairly, transparently and lawfully; collected for specific and clear purposes and not further processed incompatibly; adequate and limited to what is necessary; accurate and kept up to date; kept securely; and not retained longer than necessary. Anonymised data falls outside these obligations, so anonymisation before model training is strongly preferred.

Section 5 Automated processing and data subject rights

Data subjects have rights including access, correction, erasure, restriction and objection. The PDPL gives data subjects a right to object to decisions based solely on automated processing, including profiling, that have legal consequences or seriously affect them. AI use cases that make or materially influence decisions about passengers or staff need a human review route.

Section 6 Security, impact assessment and cross-border transfer

Controllers must apply appropriate technical and organisational security measures, notify the UAE Data Office of breaches that affect privacy, and carry out a data protection impact assessment before processing likely to pose a high risk, such as large-scale processing of sensitive data or systematic evaluation using new technologies like AI. Transfers of personal data outside the UAE are permitted to countries with adequate protection or under specified safeguards and exceptions; model training on third-party cloud infrastructure abroad must be reviewed against these rules.